

INSTRUCTIONS

Answer or Answer and Counterclaim (CIV301)

Important Notices and Resources

The Court has forms and instructions, for some types of cases, as a general guide to the court process. These instructions explain the steps in more detail and answer common questions, but are not a full guide to the law. Court employees may be able to give general information on court rules and procedures, but they can't give legal advice.

Have questions about court forms or instructions?

- Visit [MNCourts.gov/SelfHelp](https://mncourts.gov/SelfHelp)
- Call the Statewide Self-Help Center at 651-435-6535

Forms You May Need

- *Answer or Answer and Counterclaim* (CIV302)
- *Affidavit of Service* (SOP105)

Forms are available on the [Minnesota Judicial Branch website](https://mncourts.gov/forms) at mncourts.gov/forms under the Civil category or you can get them from your local courthouse.

General Information and Resources

An Answer form is used to respond to the court documents that started a civil lawsuit, called a Summons and Complaint. In a civil lawsuit, the party suing is called the Plaintiff and the party being sued is called the Defendant.

Do not use this Answer form to respond to a lawsuit in conciliation court, or for family, juvenile, criminal, probate, or guardianship cases. The court has specific answer forms for those cases.

Forms for specific case types are available at mncourts.gov/forms.

The most common use for this Answer is to respond to a lawsuit in District Court that says you owe money for services or purchases, have breached a contract, or done something else to injure the party suing you. The lawsuit may ask for a money judgment or an order requiring you to do some action (called "specific performance"). All civil cases are complicated, talk with a lawyer to get legal advice if you have questions about your case.

Note: Corporations, LLCs, and other business entities must be represented by a lawyer in District Court. An officer or shareholder cannot sign the Answer or represent the business entity in District Court.

Helpful Resources

- **Help Topic:** Find definitions, Frequently Asked Questions, links to forms, rules & laws, and helpful resources on the [Civil Actions Help Topic](https://mncourts.gov/help-topics/civil-actions) on the Minnesota Judicial Branch website at mncourts.gov/help-topics/civil-actions. Review the booklet *What to Expect as a Self-Represented Party in a Civil Trial*, under Tools & Resources.
- **Libraries:** Get helpful information from the law library. Find your local law library online at mn.gov/law-library/research-links/county-law-libraries.jsp or call the Minnesota State Law Library at 651-297-7651.
- Research your issue at LawHelpMN.org.
- Talk with a lawyer. To find a lawyer:
 - Visit MNCourts.gov/Find-a-Lawyer
 - Call Legal Aid to see if you qualify for free legal help: 1-877-696-6529 (income limits may apply)

What Should I Do When I Receive a Summons and Complaint?

When you are served with a *Summons and Complaint*, a lawsuit against you has started even if nothing has been filed with the Court. A *Summons and Complaint* may be served on you personally, left at your home with someone who lives with you if they are of “suitable age and discretion,” or served by mail if you sign and return a document called *Waiver of Service of Summons*.

If you disagree with the lawsuit and want to challenge it, you must fill out a written *Answer* and serve it on the party suing you. If a lawyer signed the *Complaint* on behalf of the party suing you, your *Answer* should be served on the lawyer.

The *Summons* you received states your deadline for responding. In most civil cases you have 21 days from the date you were served with the *Summons and Complaint* to serve an *Answer* to the *Complaint*. If you don’t serve an *Answer* on the Plaintiff within this time period, the Plaintiff can ask the court for a default judgment against you without further notice to you.

Step 1

Fill out the *Answer or Answer and Counterclaim* form (CIV302)

Fill out the top of the form, called the caption, using the information from the *Complaint*.

Read each paragraph of the *Complaint*. For each paragraph of the *Complaint*, you must admit, deny, or state that you don’t have enough information to answer the statements. You will make these admissions and denials on the *Answer*.

1. If all statements in a paragraph of the *Complaint* are false, you will “deny” that paragraph by writing the number of the paragraph in your *Answer* at #1.
2. If all the statements in a paragraph are true, you will “admit” that paragraph by writing the paragraph number in your *Answer* at #2.

3. If the paragraph is partly true and partly untrue, list the paragraph number in your *Answer* at #3. Then write down at #3 the statements in the *Complaint* paragraph that you agree are true.
4. There may be statements you can't admit or deny, because you don't have enough information to know if the statement is true or false. List these statements or paragraph numbers in your *Answer* at #4.

Remember: you must admit, deny, or address each paragraph in the *Complaint*.

5. Affirmative Defenses

Court Rules require that you raise all Affirmative Defenses in your *Answer*. You may have a defense, but not an Affirmative Defense. Your defense may simply be that the statements in the *Complaint* are false, and you deny them. An Affirmative Defense is a new set of facts that would defeat the other party's claims even if the facts in the *Complaint* are true.

Example: The Complaint says you owe Computer House \$4,000. You went through bankruptcy and the \$4,000 debt was discharged in the bankruptcy. Although you admit that you bought a computer and did not pay the \$4,000, you can check "Discharge in bankruptcy" and explain that you are no longer responsible for the debt because it was discharged in Bankruptcy Case No. 12311 in March 2018.

In this example, you admit that the facts in the *Complaint* are true, but you have an Affirmative Defense (Discharge in Bankruptcy).

Some Affirmative Defenses can be raised later in an *Amended Answer*, but you should raise all defenses you know of now. Read through the Affirmative Defenses listed in the *Answer* at #5. If any apply to your case, check the box and then list the facts that support the defense in the space provided. If you need more space, attach a separate sheet of paper.

If you think you have a defense to the *Complaint*, get advice from a lawyer to determine whether it is an Affirmative Defense.

6. Counterclaims

Paragraph 6 of the *Answer* asks about counterclaims.

The Plaintiff is suing you based on the set of facts included in the *Complaint*. If you think that the Plaintiff owes you something instead of or in addition to you owing them, you may have a counterclaim. In the counterclaim, you must state facts that, if proven to be true, will support your request for a judgment against the Plaintiff. You must also state what "relief" or outcome you want the judge to order.

If you don't have a counterclaim, check the box that says "I have no counterclaims".

Note: If you include a counterclaim and the court determines that your claim was frivolous or not supported by law, you could be ordered to pay fines, costs or lawyer fees for the other party. On the other hand, failing to include a counterclaim could prevent you from suing later. If you have a counterclaim **based on the same facts that are in the *Complaint***,

you must state your counterclaim in your *Answer*. Talk to a lawyer for help deciding if you have a counterclaim.

7. Adding Parties to the Lawsuit

Under the Minnesota Rules of Civil Procedure, it is possible to add additional parties to the action, called a “joinder”. If there are additional parties you think should be added to the counterclaim, talk with a lawyer. Review the section above “Helpful Resources” for information on finding a lawyer.

8. Relief

Paragraph 7 is where you tell the judge what you want to happen in the case. Select the relief you are requesting by checking a box. Standard relief language is included on the form.

After you complete the *Answer* form, read the Acknowledgment and sign and date the form. If a lawyer is representing you, the lawyer will sign instead. Then fill in your name, address, date of birth, email address, and phone number under the signature line.

Step 2 Make Copies of the Form

Make 1 copy of the completed *Answer* for yourself and 1 copy for each Plaintiff and any Defendant other than you.

Step 3 Serve the Other Party

Overview

The other party must receive a copy of your *Answer* or *Answer and Counterclaim*. This is called service of process. Your *Answer* can be served personally, meaning they are handed to the other party or served by mail.

- If there is more than 1 Plaintiff or more than 1 Defendant, each of the other parties need to be served with your *Answer*.
- **If the other party is represented by a lawyer**, serve their lawyer instead of the other party directly. Check the *Complaint* to see if the Plaintiff is represented.
 - If the Plaintiff is represented, their lawyer signed the *Complaint* and included their address. Your *Answer* must be served on the lawyer.
 - If the Plaintiff does not have a lawyer, the Plaintiff signed the *Complaint* and your *Answer* must be served on the Plaintiff.

Service of your forms must be completed within the time stated in the *Summons and Complaint*. The time period starts the day after you were served.

- For example, if you were served with a *Summons* on Monday that says you have 21 days to

respond, start counting your 21 days on Tuesday (Day 1). The 21st day is the last day your *Answer* can be served on time.

- Service is complete when the *Answer* is hand-delivered or mailed to the Plaintiff, or their lawyer. If the 21st day falls on a Saturday, Sunday, or legal holiday, then the deadline becomes the next day that is *not* a Saturday, Sunday, or legal holiday.

Do not serve the original *Answer* (the paper you actually signed) because the original must be filed with the court.

For more information about serving court papers, see Minnesota Rules of Civil Procedure, Rule 4 and Rule 5.02 Service (revisor.mn.gov/court_rules).

Service by Mail

To serve by mail, put 1 copy of your *Answer* in an envelope addressed to the party, or the other party's lawyer if they are represented, with your return address on the envelope. Then mail the envelope to the other party by first class U.S. mail.

- The address for the Plaintiff, or Plaintiff's lawyer, is listed on the *Complaint*, below their signature.

Personal Service

The server hands the other party 1 copy of your *Answer*. You can't personally serve the other party. You must arrange for someone who is at least 18 years old and not a party to the case to personally serve the other party with your *Answer*. This can be a process server, sheriff, or someone you know. There is a fee for the sheriff or process server to complete service.

- If a lawyer signed the *Complaint*, the *Answer* can be hand-delivered to the lawyer or given to an employee of the lawyer who is authorized to accept service.
- If the Plaintiff is not represented, the *Answer* can be hand-delivered to the Plaintiff, or left at the Plaintiff's home with an adult or other person of "suitable age and discretion" who lives there with the Plaintiff.

Step 4

Complete the Affidavit of Service Form (SOP105)

The person who hand-delivers or mails the *Answer* must fill out an *Affidavit of Service*.

The server must sign the *Affidavit of Service* under penalty of perjury. By signing the Affidavit under penalty of perjury, the server is stating that the information in the Affidavit is true to the best of their knowledge. Perjury is the crime of intentionally lying or misrepresenting the truth and is punishable by jail or other sanctions.

You must have an *Affidavit of Service* for each party served. The *Affidavit of Service* does **not** get sent to the other parties. After signed, keep 1 copy of the *Affidavit of Service* for your own records before filing.

Step 5

File your Answer and Affidavit of Service with the Court

Keep the original *Answer* and the *Affidavit of Service* with your important documents. If you receive a “Notice of Judicial Assignment” or other letter from the court, it means that the Plaintiff has filed the *Summons and Complaint*. You must now file your original *Answer* and *Affidavit of Service* with the court.

How to File

File your court papers with court administration at the courthouse or electronically (eFile).

- **At the Courthouse**

Bring your original court papers in person or send by mail. Addresses for courthouses are online at www.mncourts.gov/Find-Courts. Use the drop-down menu or map to find your county.

- **Electronic Filing through the eFS System**

Use the eFS System to eFile your court papers. Learn how to eFile at www.mncourts.gov/eFile, under “eFile and eServe Training”.

If you choose to eFile your court papers, you must eFile for the rest of the case. See [Minn. Gen. R. Prac. 14.01\(b\)\(5\)\(i\)](#) (revisor.mn.gov/court_rules/gp/id/14/).

Court Fees

When you file your *Answer* and *Affidavit of Service*, you are required to pay a filing fee. The fee varies by county. If you can’t afford to pay the fee, you can ask the court to waive the fee.

Forms and instructions for the fee waiver are available from court administration or online at www.mncourts.gov/forms under the Fee Waiver category. Fill out the forms and file them with court administration when you file your *Answer*. Your request will be reviewed by a judicial officer who will decide whether you qualify for fee waiver. If the judicial officer does not sign an order that waives the fee, you must be prepared to pay the fee.

Step 6

Settlement or Trial

After you serve your *Answer*, the Plaintiff may contact you to discuss settling the case without a trial. Most cases settle. If you do not hear from the Plaintiff, you can call the Plaintiff or the Plaintiff’s lawyer if they are represented, to talk about settling the case.

If you are representing yourself, remember that you can get help from a lawyer at any time during

the case. You can hire a lawyer to help with some or all parts of your case. For example, if you get a settlement offer, you may want to talk with a lawyer before you accept the offer or sign any documents.

At each court hearing, the Judge will ask if the parties tried to settle the case and may require mediation or arbitration. See the [Settle Out of Court Help Topic](https://mncourts.gov/help-topics/settle-out-of-court) at mncourts.gov/help-topics/settle-out-of-court.

Don't ignore anything you receive from the Plaintiff or the court. You may need to respond in writing to additional documents such as interrogatories, requests for admissions, or motions.

Attend all court hearings. There may be several court hearings before a trial. Review the "Helpful Resources" section on page 2 for how to find more information about civil trials, what to expect, and contacting a lawyer.